

12	Truong vs. Batalla 2023-01300672	Motion for Terminating Sanctions Defendant's motion was served on Plaintiff via email on 1/29/26. However, Plaintiff's counsel withdrew from this matter effective 9/18/24 and Plaintiff apparently remains unrepresented by counsel in this case. Therefore, Defendant is required to serve the motion on Plaintiff via non-electronic means, such as mail or personal service. California Rules of Court, Rule 2.251(c)(3)(B) provides that self-represented parties "are to be served by non-electronic methods unless they affirmatively consent to electronic service." Similarly, Code of Civil Procedure section 1010.6 subdivisions (b)(1) and (f)(2) provide that unrepresented persons are exempt from mandatory electronic filing and service. Here, there is no indication Plaintiff has affirmatively consented to electronic service. Therefore, unless Defendant obtains Plaintiff's consent to electronic service, Defendant must serve the motion on Plaintiff by non-electronic means within the statutory notice period before the new hearing date. Tentative Ruling: Defendant Luis Batalla's Motion for Terminating Sanctions is CONTINUED to 6/22/26 at 1:45 p.m. in this Department.
13	Alliance Funding Group vs. ELT Transportation LLC 2024-01411660	Claim of Exemption - Wage Garnishment Before the Court is the continued hearing on a claim of exemption of wages presented by judgment debtor Teona Petrosian (Debtor) and the opposition to claim of exemption filed by judgment creditor Alliance Funding Group (Creditor). The Court finds Debtor timely complied with the requirements to claim an exemption of levied funds, and Creditor timely complied with the requirements to oppose the claim of exemption. (Code of Civ. Proc. §§ 703.520, 703.550.)

	The claimant bears the burden of proof at the hearing on the exemption claim. (Code of Civ. Proc. § 703.580, subd. (b); O’Brien v. AMBS Diagnostics, LLC (2016) 246 Cal.App.4th 942, 948.) However, the exemption statutes are liberally construed in favor of the claimant. (Independent Bank v. Heller (1969) 275 Cal.App.2d 84, 88.) Debtor seeks a claim of exemption because her earnings are below the minimum amount for earnings withholding order. Creditor argues the Debtor’s claim of exemption is not supported by evidence establishing Debtor’s disposable earnings fall below the statutory threshold set forth in Code of Civil Procedure section 706.050; Debtor merely states that she receives commissions and currently has no earnings. Creditor also argues that Debtor is compensated through commissions does not establish that her earnings are exempt from garnishment. Debtor filed a declaration in response wherein she attests that she is employed by EXP Northern California on a “1099” subcontractor basis as a realtor since 11/6/25. (Petrosian Decl., ¶ 2.) Debtor does not assert commission income is not wages. (Id., ¶ 3.) Rather, she explains that she does not know if she will earn a commission until escrow closes. (Ibid.) She states she had zero income from 11/6/25 through 2/23/26, the date she prepared her claim of exemption. (Id., ¶ 3.) She did not provide documentation because she had none to provide. (Ibid.) Since she filed the claim of exemption, she had one sale close and earned \$10,940.00. (Id., ¶ 4.) She did not learn of the closing and receive the commission until after she prepared the claim of exemption. (Ibid.) Presently, she does not have any pending closings. (Id., ¶ 5.) She also asserts the residential real estate market is very poor at present. (Ibid.) Debtor asserts that her income is below the minimum, even taking her single sales commission into account, and estimates her income as follows: “I am informed and believe the minimum wage for §706.050 is \$16.90 per hour. I have now worked for EXP Northern California for more than 4 full months, plus approximately 3 weeks. Multiplication of \$26.90 by 208 to obtain the monthly amount produces \$3,515.20 per month as the threshold for §706.050.
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	Multiplication by 4 months produces \$14,060.80 per 4 months as the threshold. My actual income over 4+ months is \$10,940.00, which is below the \$14,060.80 threshold for 4 months. “At the time of the April 6, 2026 hearing, my duration of employment with EXP Northern California will be exactly 5 months. While I anticipate essentially zero change of any additional income between today's date and the April 6, 2026 hearing date, I will update the Court regarding this at hearing, for use in comparison with the threshold for 5 months, of $(\\$16.90 * 208) * 5 = \\$17,576.00$.” (Id., ¶¶ 6, 7.) Debtor filed a second declaration as ordered by the Court on 4/13/26, with evidence establishing her start date of 11/6/26. (2nd Petrosian Decl., ¶ 2, Ex. 1 [Independent Contractor Agreement, effective 11/6/26].) Debtor also provided documentation establishing she earned two commissions from 11/6/25 – 5/8/26, one of \$9,495.00 and the other of \$13,140.50, for a total of \$22,635.50. (Id., ¶ 3, Ex. 2.) She also attests that because she is an independent contractor, the these payment figures are gross receipts. She is responsible to withhold/pay her own taxes as well as other expenses from her gross revenues. She states a conservative estimate of taxes, even without accounting for my expenses, is 25%. (Id., ¶ 4, Ex. 1.) Debtor has established her earnings fall below the statutory threshold set forth in Code of Civil Procedure section 706.050. The Court therefore finds Debtor’s wages, which are earned through commissions, are exempt in whole. Tentative Ruling: The claim of exemption is GRANTED.
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14	Temple Hills Land Company, LLC vs. Floraville, LLC 2023-01360506	1. Motion for Summary Judgment and/or Adjudication 2. Motion for Summary Judgment and/or Adjudication 3. Motion for Summary Judgment and/or Adjudication There are 3 motions for summary judgment pending before the Court, seeking adjudication of the same issues with the same evidence and arguments presented for each. Additionally, there are numerous objections submitted as to evidence in support of the Motions. All objections shall be addressed here. Temple Hills’s objection to Boss’s Declaration generally and to paragraphs 6-18 are overruled. Boss has demonstrated some special skill or knowledge through his own testimony in his declaration. Boss’s declaration demonstrates he has sufficient skill and knowledge regarding title and title searches. Boss’s declaration provides each deed or document relied upon by each paragraph. (Boss Decl., ¶¶ 7-18.) An expert may provide expert opinion on the ultimate issue “which the court may or may not accept.” (Wells Truckways v. Cebrian (1954) 122 Cal.App.2d 666, 674.) Additionally, an expert may rely on otherwise inadmissible evidence to form an opinion. Thus, Temple Hills’s objections to Boss’s declaration are overruled. Temple Hills’s objections to the tax records are not dispositive to the case and, thus, the Court declines to rule on them. Floraville’s objections to Exhibits 14 A-h are overruled. To the extent any of the exhibits are not referenced in the separate statements, the Court exercises its discretion to consider the evidence. (San Diego Watercrafts, Inc. v. Wells Fargo Bank, N.A. (2002) 102 Cal.App.4th 308, 315.) Documents received through discovery can be authenticated by an attorney declaration if there is sufficient evidence to support the declaration. Counsel has provided sufficient evidence the exhibits produced are the copies of the documents provided in response to a business records subpoena. (Gleason Decl., ¶ 8.) Finally, the records are excepted from the hearsay rule as records kept in the normal course of business because they are the records normally kept in regards to a city council appeal. Floraville’s remaining objections to the declarations of Schroeder, Gleason, Dornin, and Cantrell and the remaining requests for
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